

MUTUAL NONDISCLOSURE AGREEMENT

This Mutual Nondisclosure Agreement (the "Agreement") is made effective as of the date last signed below by and between the parties hereto.

CONFIDENTIALITY.

The parties acknowledge that during the course of their discussions, each may disclose to the other certain non-confidential information that is confidential or otherwise subject to legal protection.

OBLIGATIONS OF THE RECEIVING PARTY.

The party receiving Confidential Information (the "Receiving Party") agrees to (a) hold the Confidential Information in confidence and not disclose it to any third party without the prior written consent of the disclosing party.

TERM.

The obligations of confidentiality set forth in this Agreement shall remain in effect for a period of three (3) years from the date of disclosure of the Confidential Information.

GOVERNING LAW.

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the dates set forth below.